Plaintiffs Evidentiary Objections to Loewy

Loewy had no relationship with any party until December 16, 2025, yet ¶¶ 3-5 recount Orrick's 2020-mid-2025 engagement, work, and termination. The court sustains all evidentiary objections to the Loewy declaration. Sustaining objections to 3-8 removes all evidentiary support the Loewy declaration provides for the June 30, 2025, termination date.

Conclusion

Plaintiffs have demonstrated that Orrick's representation of the Companies was ongoing when Orrick appeared for Tadros, that all four *M'Guinness* factors are present, that post-June 30 conduct proves continued representation, and that Orrick's evidentiary showing is inadmissible. Orrick failed to carry its burden to make an affirmative showing of termination. Under the automatic-disqualification rule for concurrent representation of clients with adverse interests, disqualification is required.

The Motion to disqualify is granted.

The request for prohibition on corporate funding and disgorgement of fees is denied without prejudice. The court will not entertain further argument on this point.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2504974	JULIENNE vs RIVERSIDE COMMUNITY COLLEGE DISTRICT	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling:

GRANT Defendant’s Request for Judicial Notice. SUSTAIN the demurrer with 30 days leave to amend.

The duty to conduct a classification review is not ministerial and Plaintiff is seeking monetary relief. As the only remedy available from a determination that Plaintiff was working at a higher classification is the payment of wages at the higher rate, the relief sought is solely monetary. Plaintiff fails to plead sufficient facts to support the cause of action for a petition for writ of mandate based on his request for a classification review. In addition, Plaintiff has an adequate remedy at law. FEHA provides remedies that include back pay based on discrimination as well as reemployment. If other remedies at law are available, then the remedy of mandate is not available. (*Agosto v. Board of Trustees of Grossmont-Cuyamaca Community College District* (2010) 189 Cal.App.4th 330, 336.) As the remedies sought by Plaintiff (payment of unpaid wages from being misclassified due to discrimination and reemployment) are available under FEHA, Plaintiff is not entitled to a writ of mandate.

For the allegations of a violation of the Equal Pay Act, Plaintiff contends that he was paid less than “comparable employees”, but he does not identify the age or gender of these employees. If the challenged policy affects both male and female employees equally, there can be no EPA violation. Because Plaintiff does not allege that he was paid less than employees of another gender, age, or race, he fails to state sufficient facts to state a cause of action under the Equal Pay Act.

7.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2506588	LAMBERT vs BMW OF NORTH AMERICA, LLC	MOTION TO COMPEL DEFENDANT’S FURTHER RESPONSES TO SPECIAL INTERROGATORIES NOS. 2, 4, 6, 7, 9, 11 AND 13;
CVRI2506588	LAMBERT vs BMW OF NORTH AMERICA, LLC	MOTION TO COMPEL DEFENDANT’S FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS NOS. 1-15
CVRI2506588	LAMBERT vs BMW OF NORTH AMERICA, LLC	MOTION TO COMPEL DEFENDANT’S FURTHER RESPONSES TO FORM INTERROGATORIES NOS. 15.1 AND 17.1
CVRI2506588	LAMBERT vs BMW OF NORTH AMERICA, LLC	MOTION TO COMPEL DEFENDANT’S FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS NOS. 1, 2, 3, AND 4

Tentative Ruling:

Per the request of the parties, these motions are continued to September 22, 2026, at 8:30am, D-4.

The parties are ordered to further meet and confer to resolve their discovery disputes. The parties are to submit a joint statement at least 10 days before the continued hearing date, outlining the remaining discovery requests still at issue, and attaching a copy of the original and supplemental responses (if any) that have been exchanged between the parties.